



Instructions for Notice of Appeal of Decision Under Section 210 or 245A of the Immigration and Nationality Act

Department of Homeland Security
U.S. Citizenship and Immigration Services

USCIS
Form I-694

What Is the Purpose of Form I-694?

This form is used to notify U.S. Citizenship and Immigration Services (USCIS) that you are appealing the decision to the Director of USCIS of your denied permanent residence, temporary residence, or a waiver of grounds of inadmissibility under the amnesty program provisions of the Immigration Reform and Control Act of 1986 (IRCA).

General Instructions

We provide free forms through the USCIS website. To view, print, or complete our forms, you should use the latest version of Adobe Reader, which you can download for free at <http://get.adobe.com/reader/>. If you do not have Internet access, you may call the USCIS Contact Center and ask that we mail a form to you.

Signature. You (or your signing authority) must properly complete your form. USCIS will not accept a stamped or typewritten name in place of a signature on this application. If you are under 14 years of age, your parent or legal guardian may sign the appeal on your behalf. A legal guardian may also sign for a mentally incompetent person. If your application is not signed, or if the signature is not valid, we will reject your form. See 8 CFR 103.2(a)(7)(ii)(A). If USCIS accepts a request for adjudication and determines that it has a deficient signature, USCIS may reject or deny the request.

Validity of Signatures. USCIS will consider a photocopied, faxed, or scanned copy of an original benefit request with a handwritten signature as valid for filing purposes. The photocopy, fax, or scan must be of the original request or document containing the handwritten ink signature.

Filing Fee. See Form G-1055, available at www.uscis.gov/forms, for specific information about the fees applicable to this form.

Evidence. When you file your form, you must submit all evidence and supporting documentation listed in these Instructions.

Copies. You may submit legible photocopies of requested documents unless the Instructions specifically instruct you to submit an original document. USCIS may request an original document at any time during our process. If we request an original document from you, we will return it to you after USCIS determines it no longer needs the original.

Translations. If you submit a document with information in a foreign language, you must also submit a full English translation. The translator must sign a certification that the English language translation is complete and accurate, and that they are competent to translate from the foreign language into English. The certification must also include their signature, printed name, the signature date, and their contact information.

USCIS Contact Center. For additional information on the application and Instructions about where to file, change of address, and other questions, visit the USCIS Contact Center at www.uscis.gov/contactcenter or call at **800-375-5283** (TTY **800-767-1833**). The USCIS Contact Center provides information in English and Spanish.

Disability Accommodations/Modifications. To request a disability accommodation/modification, follow the instructions on your appointment notice or at www.uscis.gov/accommodationsinfo.

How To Complete Form I-694

1. Type or print legibly in black ink.

2. If you need extra space to complete any item within this form, use the space provided in **Part 7. Additional Information** or attach a separate sheet of paper. Type or print your name and Alien Registration Number (A-Number) (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.
3. Answer all questions fully and accurately. If a question does not apply to you (for example, if you have never been married and the question asks “Provide the name of your current spouse”), type or print “N/A,” unless otherwise directed. If your answer to a question which requires a numeric response is zero or none (for example, “How many children do you have” or “How many times have you departed the United States”), type or print “None,” unless otherwise directed.
4. **USCIS Online Account Number.** You will only have a USCIS Online Account Number (OAN) if you previously filed a form that has a receipt number that begins with IOE. If you filed the form online, you can find your OAN in your account profile. If you mailed us the form, you can find your OAN at the top of the Account Access Notice we sent you. If you do not have a receipt number that begins with IOE, you do not have an OAN. The OAN is not the same as an A-Number.
5. **Part 4. Appellant’s Statement, Contact Information, Certification, and Signature.** Select the appropriate box to indicate whether you read this form yourself or whether you had an interpreter assist you. If someone assisted you in completing the form, select the box indicating that you used a preparer. Further, you must sign and date your form and provide your daytime telephone number, mobile telephone number (if any), and email address (if any). Every form **MUST** contain the signature of the appellant (or parent or legal guardian, if applicable). A stamped or typewritten name in place of a signature is not acceptable.
6. **Part 5. Interpreter’s Contact Information, Certification, and Signature.** If you used anyone as an interpreter to read the instructions and questions on this form to you in a language in which you are fluent, the interpreter must fill out this section, provide his or her name, the name and address of his or her business or organization (if any), his or her daytime telephone number, and his or her email address (if any). The interpreter must sign and date the form.
7. **Part 6. Contact Information, Declaration, and Signature of the Person Preparing this Form, if Other Than the Appellant.** This section must contain the signature of the person who completed your form, if other than you, the appellant. If the same individual acted as your interpreter **and** your preparer, that person should complete both **Part 5.** and **Part 6.** If the person who completed this form is associated with a business or organization, that person should complete the business or organization name and address information. Anyone who helped you complete this form **MUST** sign and date the form. A stamped or typewritten name in place of a signature is not acceptable. If the person who helped you prepare your form is an attorney or accredited representative whose representation extends beyond preparation of this form, he or she may be obliged to also submit a completed Form G-28, Notice of Entry of Appearance as Attorney or Accredited Representative, along with your form.
8. **Part 7. Additional Information.** If you need extra space to provide any additional information within this form, use the space provided in **Part 7. Additional Information**. If you need more space than what is provided in **Part 7.**, you may make copies of **Part 7.** to complete and file with your form, or attach a separate sheet of paper. Type or print your name and A-Number (if any) at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.

We recommend that you print or save a copy of your completed form for your records.

Briefs

You may submit a brief in support of your Form I-694, although it is not required. You may submit a brief with your Form I-694 or separately after your form is received at the USCIS Service Center. If you submit your brief separately, USCIS must receive it within 30 calendar days from the receipt date of your Form I-694.

Oral Arguments

You may request to appear before the USCIS Director or an officer designated by the Director to present an oral argument. To request an oral argument, submit a letter with your Form I-694 that explains the reasons an oral argument is desired in support of or in place of a brief. USCIS will deny any request for an oral argument where the appeal is deemed frivolous, where oral argument will serve no useful purpose, or where written material or representations will appropriately serve your interests. If a request for an oral argument is granted, you must appear in person at a USCIS office. The officer to whom the appeal is taken will designate in writing the time, date, and place of the oral argument. USCIS will limit an oral argument in any case to 15 minutes, unless justification and arrangements for additional time are made in advance.

Where To File?

You must file Form I-694 with the USCIS Office that adjudicated your case, as provided on the Notice of Denial. USCIS must receive your appeal within 30 calendar days of the date noted on the Notice of Denial. The 30-day period for submitting an appeal begins 3 days after the Notice of Denial is mailed. USCIS will not grant any extensions. Do not file your appeal at the USCIS Administration Appeals Office (AAO).

Address Change

If you are not a U.S. citizen, you must notify USCIS of your new address within 10 days of moving from your previous residence. For information on changing your address, go to our website at www.uscis.gov/addresschange or call the USCIS Contact Center.

NOTE: Do not submit a change of address request to the USCIS Lockbox.

Processing Information

USCIS will reject any Form I-694 that is not signed or accompanied by the correct fee will be rejected with a notice that Form I-694 is deficient. You may correct the deficiency and resubmit Form I-694. An application or petition is not considered properly filed until accepted by USCIS with the correct fee.

Initial processing. Once USCIS accepts your appeal, we will check it for completeness. If you do not properly complete this form, you will not establish a basis for your eligibility and we may reject or deny your form.

Requests for More Information. USCIS may request that you provide more information or evidence to support your form. We may also request that you provide the originals of any copies you submit. If we request an original document from you, we will return it to you after USCIS determines it is no longer needed.

Requests for Interview. We may request that you appear at a USCIS office for an interview based on your form. During your interview, USCIS may require that you provide your biometrics to verify your identity and/or update background and security checks.

Decision. The decision on Form I-694 involves a determination of whether you have established eligibility for the immigration benefit you are seeking. USCIS will notify you of our decision in writing.

USCIS Forms and Information

To ensure you are using the latest version of this form, visit www.uscis.gov.

Penalties

If you knowingly and willfully falsify or conceal a material fact or submit a false document with your Form I-694, we will deny your form and may deny any other immigration benefit. In addition, you will face severe penalties provided by law and may be subject to criminal prosecution.

DHS Privacy Notice

AUTHORITIES: The information on this appeal form, and associated evidence, is requested under Immigration and Nationality Act (INA) sections 210 and 245A.

PURPOSE: The primary purpose for providing information on this appeal form is to notify DHS you are appealing your denied permanent residence, temporary residence, or a waiver of grounds of inadmissibility under the amnesty program provisions of the Immigration Reform and Control Act of 1986. DHS uses the information requested on this form to adjudicate the appeal you are seeking.

DISCLOSURE: The information you provide is voluntary. However, failure to provide the requested information, and any requested evidence, may delay a final decision on your appeal, or result in denial of your appeal.

ROUTINE USES: The information provided in this form is confidential and may only be used as provided in INA sections 210(b)(6) and 245A(c)(5). DHS may, where allowable under relevant confidentiality provisions, disclose the information you provide on this appeal and any additional requested evidence with other Federal, state, local, and foreign government agencies and authorized organizations. DHS follows approved routine uses, as described in the associated published system of records notices [DHS-USCIS-001 - Alien File, Index, and National File Tracking System and DHS-USCIS-007 - Benefits Information System] and the published privacy impact assessment [DHS/USCIS/PIA-016(a) Computer Linked Application Information Management System and Associated Systems], which can be found at www.dhs.gov/privacy.